ANSWER KEY

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MAHATMA GANDHI UNIVERSITY, KOTTAYAM

MGU-UGP (HONOURS) REGULAR EXAMINATION MARCH 2025

SECOND SEMESTER

Discipline Specific Core Course (DSC) - MG2DSCPOL100, MG2DSCPJM100 - INTRODUCTION TO INDIAN CONSTITUTION

(2024 ADMISSION ONWARDS)

PART A

1.22 Parts.

2.Article 51A.

3.Articles 36 to 51.

4.1949.

5.The President of India.

6.Third Reading.

7.Chief Justice of India.

8.73rd Amendment.

9.24th Amendment.

10.Supervisory Jurisdiction.

PART B

11.Constitution in a democratic system sets the framework for governance, defines powers and duties of institutions, guarantees citizens' rights, and ensures rule of law-it acts as the supreme legal authority guiding democratic functioning, accountability, and protection of individual freedoms.

12.Government of India Act 1935 was criticized for being complex, retaining British control, denying full autonomy, and excluding Indian representation in key decisions-lack of real federalism-did not address the issues of fundamental rights-continuing British control over defence and foreign affairs- centralized power and failed to reflect democratic principles, making it unacceptable to nationalists and Indian political leaders.

13.Indian National Congress influenced constitutional development by demanding responsible government and promoting civil liberties-Nehru Report, 1928 proposed a constitutional framework for India -1931 Karachi Resolution- democratic values, inclusive nationalism, secularism, fundamental rights, socio-economic reforms and representative institutions, laying the ideological groundwork for the Constitution adopted post-independence.

14.Criticisms of Fundamental Rights include excessive limitations, vague language, and dependence on judicial interpretation-they are criticized for focusing primarily on political rights while neglecting social and economic rights-some rights are not absolute and can be suspended, especially during emergencies, reducing their effectiveness in protecting individual freedoms in all situations.

15.Preamble expresses India's commitment to justice, liberty, equality, and fraternity-it reflects the people's aspirations for a sovereign, democratic, secular, and inclusive society and serves as a guiding principle for interpreting the Constitution and ensuring social and political ideals.

16.Excessive executive influence over legislation, through party majority and control over parliamentary agenda, can weaken legislative scrutiny and reduce debate quality, potentially undermining the independence and effectiveness of parliamentary democracy in holding the government accountable-the legislature is intended to scrutinize and debate the executive's proposals-the use of presidential ordinances in India, which are executive decrees that have the force of law, has been criticized for undermining the role of parliament in law-making .

17.Opposition is expected to offer constructive criticism and policy alternatives, not just disrupt proceeding-though often adversarial, its role is vital for democratic balance, legislative improvement, and checking the ruling party, ensuring accountability and diverse perspectives in governance-opposition serves to make the ruling party accountable for their actions, reminding them that they need to be responsive to the public's needs and concerns.

18. The effectiveness of parliamentary debates has evolved over time- moving from primarily formal discussions to more engaging and interactive formats with increased opportunities for members to express their views and hold the executive accountable-parliamentary debates have also declined in quality due to reduced sittings, politicization, frequent disruptions, and lack of informed discussion- traditional debate has a long history, contemporary practices aim to enhance the participation of members and ensure greater accountability of the government-while some critical issues are still debated meaningfully, the overall decline hampers transparency, legislative depth, and democratic engagement over time.

19.Governor's financial powers include laying the annual state budget before the legislature, giving assent to money bills, ensuring the proper procedures for budget and expenditure are followed-making certain grants as needed-according to article 203 and 204 of the Indian Constitution- recommending President's rule in case of financial instability-however, these powers are largely exercised based on the advice of the state's council of ministers.

20.Public Interest Litigation (PIL) can be filed under Article 32 in the Supreme Court and Article 226 in High Courts-it allows individuals or groups to seek judicial redress in matters affecting public interest, especially for rights violations of disadvantaged groups-the court can take cognizance of a letter or postcard and convert it into a PIL, as seen in the case of Rural Litigation & Entitlement Kendra, Dehradun vs. State of Uttar Pradesh.

PART C

21.Constituent Assembly worked with vision and inclusivity, drawing from global examples and ensuring detailed debates-its strengths included democratic functioning, consensus-building, and representation-however, weaknesses included limited representation of some groups, dominance of Congress leaders, and lack of direct elections, which raised concerns about broader public participation.

22.Directive Principles are categorized into socialistic (e.g., right to work, education), Gandhian (e.g., village panchayats), and liberal-intellectual (e.g., uniform civil code)-their objectives are to promote social justice, reduce inequality, and guide governance toward a welfare state, even though they are non-justiciable and not legally enforceable.

23.Rajya Sabha, the upper house of Parliament, consists of 245 members—233 elected by state legislatures and 12 nominated by the President-it represents states, ensures federal balance, and reviews legislation-it is a permanent body with one-third of members retiring every two years, ensuring continuity and experience.

24.Writ jurisdiction under Articles 32 and 226 empowers courts to issue writs like habeas corpus, mandamus, and certiorari-it protects fundamental rights and ensures accountability of public authorities-while effective in many cases, delays, judicial backlog, and accessibility issues can limit its real-time effectiveness for ordinary citizens.